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Agricultural Jobs – 14-15

If you are not yet 16, there are many restrictions on agricultural work, particularly in occupations declared hazardous by the Secretary of Labor. However, once you turn 16 years old, these restrictions no longer apply. States also have rules that employers must comply with. Check your state’s work laws in agriculture: www.dol.gov/agencies/whd/state/child-labor/agriculture

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▼ What hours can I work?
In agriculture, you can work any time outside of school hours for the school district in which you reside, if you are over the age of 13. Once you turn 16 you can work on any farm at any time. If you are home-schooled, attend private school, or no school, school hours would be the same as those of the public school where you live while you are working.
▼ What jobs can I do?
If you are 14 or 15 years old, you may work outside school hours in jobs not declared hazardous by the Secretary of Labor. Youth of any age may work at any time in any job on a farm owned or operated by their parent or person standing in place of their parent.
▼ What jobs am I not allowed to do?
Federal law establishes safety standards and restrictions for young workers on farms. If you are not yet 16, you cannot be employed in occupations that have been declared hazardous. Hazardous jobs include: • Operating a tractor of over 20 PTO horsepower, or connecting or disconnecting an implement or any of its parts to or from such a tractor; • Operating or working with a corn picker, cotton picker, grain combine, hay mower, forage harvester, hay baler, potato digger, mobile pea viner, feed grinder, crop dryer, forage blower, auger conveyor, unloading mechanism of a nongravity-type self-unloading wagon or trailer, power post-hole digger, power post driver, or non-walking-type rotary tiller; • Operating or working with a trencher or earthmoving equipment, fork lift, potato combine, or power-driven circular, band or chain saw; • Working in a yard, pen, or stall occupied by a bull, boar, or stud horse maintained for breeding purposes; a sow with suckling pigs; or a cow with a newborn calf (with umbilical cord present); • Felling, buckling, skidding, loading, or unloading timber with a butt diameter or more than 6 inches;

- Working from a ladder or scaffold at a height of over 20 feet;
- Driving a bus, truck or automobile to transport passengers, or riding on a tractor as a passenger or helper;
- Working inside:
 - A fruit, forage, or grain storage designed to retain an oxygen-deficient or toxic atmosphere;
 - An upright silo within two weeks after silage has been added or when a top unloading device is in operating position;
 - A manure pit; or
 - A horizontal silo while operating a tractor for packing purposes;
- Handling or applying toxic agricultural chemical identified by the words "danger," "poison," or "warning" or a skull and crossbones on the label;
- Handling or using explosives; and
- Transporting, transferring, or applying anhydrous ammonia.

To learn more about agricultural work that is hazardous for minors under 16 years of age, check out the Child Labor Requirements in Agricultural Occupations bulletin and fact sheet here:

- [Child Labor Requirements in Agricultural Occupations bulletin](#)
- [Farm Jobs Fact Sheet](#)

There may be some exceptions that apply to your particular situation, so check with your local Wage and Hour Division office if you have questions. Be sure to check [state](#) rules for young workers and the [Occupational Safety and Health Administration](#) (OSHA) rules that apply to all employees, regardless of their age.

▼ **How much should I be paid?**

An employer must pay you at least the federal minimum wage of \$7.25 per hour for all the hours that you work, except under certain circumstances. Employers can pay you a wage based on an hourly rate, a piece rate, a day rate, a salary, or any combination – but your hourly earnings must average at least the applicable minimum wage. Your state laws may require a higher wage rate, so be sure to contact your local [state](#) office for more information.

If you are under 20 years of age, you can be paid \$4.25 per hour during your first consecutive 90 calendar days of working for an employer. Certain full-time students, student learners, apprentices, and workers with disabilities can be paid less than the minimum wage under special certificates issued by the U.S. Department of Labor. For more information on these special situations or on exemptions to the minimum wage, please contact your local [Wage and Hour Office](#).

Agricultural employees are not required to receive additional overtime pay.

How can I file a complaint?

Young Worker Toolkit



Wage and Hour Division

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